

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION
Copeland v. Weinstein Management Co., Inc., et al.

EXHIBIT

23

**Weinstein/WMCI Dallas X Unauthorized Amicus Brief
filed May 6, 2026 in Copeland v. Decker, Cause No.
236-363132-25, 236th JDC Tarrant County**

Legal Element Supported:

Third Formal Corporate Ratification; § 3617 / § 12203(b) interference

Verified Complaint Reference:

¶¶ 83, 93

141-370402-25

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May 6, 2026

Via Electronic Service

Court Clerk
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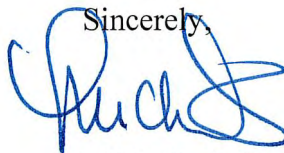
**Re: Cause No. 141-370402-25; Weinstein Management Co., Inc. and
WMCI Dallas X, LLC, v. Kathryn Copeland; in the 141st Judicial
District Court of Tarrant County, Texas**

Dear Clerk:

Enclosed please find *WMCI, Dallas X, LLC and Weinstein Management Co., Inc.'s Amicus Brief to the Court Regarding Kathryn Copeland's Requests for Accommodations Under the ADA*, filed on May 6, 2026, in Cause No: 236-36312-25; *Kathryn Copeland v. Kelly Decker, Individually and d/b/a Kelly Decker Law Firm and Formerly Decker Pool, Jointly and Severally*; in the 236th District Court of Tarrant County, Texas.

Thank you for your professional courtesy and attention to this matter. If you have any questions or concerns, please do not hesitate to contact me.

Sincerely,



Michelle S. Sortor

MSS/cbc

Via Electronic Service

Kathryn Copeland

Cause No. 236-363132-25

KATHRYN COPELAND,

Plaintiff

v.

**KELLY DECKER, INDIVIDUALLY AND
D/B/A KELLY DECKER LAW FIRM
AND FORMERLY DECKER POOL,
JOINTLY AND SEVERALLY,**

Defendants

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IN THE DISTRICT COURT

236th JUDICIAL DISTRICT

TARRANT COUNTY, TEXAS

**WMCI, DALLAS X, LLC AND WEINSTEIN MANAGEMENT CO., INC.'S
AMICUS BRIEF TO THE COURT REGARDING KATHRYN COPELAND'S
REQUESTS FOR ACCOMMODATIONS UNDER THE ADA**

COME NOW, WMCI, Dallas X, LLC And Weinstein Management Co., Inc., and file this, their Amicus Brief to the Court Regarding Kathryn Copeland's Requests for Accommodations under the Americans with Disabilities Act, and respectfully provide the following to the Court:

I.

INTRODUCTION

Amici in support of this brief are Weinstein Management Co., Inc., and WMCI X, LLC, hereinafter referred to as "Weinstein". Weinstein entities are parties to multiple lawsuits in which Ms. Copeland has either made her purported disabilities a fact question in those lawsuits (by claiming she was discriminated against according to the federal Fair Housing Act), or in which Ms. Copeland has requested (but largely been denied) sweeping requests for accommodations, such that these requests for accommodations fundamentally alter the nature of the services provided by the Court, in that she seeks to dismantle the adversarial process and/or serve to provide Copeland with an unlimited advantage. For instance, requests for accommodations include

hearings by submission only, trial by submission only, the ability to record Court proceedings (separate and apart from the official record), deadlines to be extended, to be appointed counsel, to not have to pay customary fees of litigation, such as cost of transcripts for hearings, refusal to abide by Texas Rules of Civil Procedure, in failing/refusing to appear for her deposition, in refusing to provide discovery responses/answers (even after having been ordered by the Court, and in requesting that any depositions be by written questions only. Ms. Copeland has, further, disregarded and wholly failed to abide by numerous Court orders.

However, while Copeland makes these sweeping accommodations in one court, such requests are not consistent. For instance, Copeland has requested that a pending de novo appeal of a Justice Peace court matter regarding the “repair and remedy” (filed for an apartment unit she did not reside in, which she did not have a valid lease at the time of filing) be considered entirely by submission (without either a jury trial or bench trial) because she was unable to sit up for more than 10 – 15 minutes. See *Emergency Motion for Change of Hearing Format, in Cause No. 2026-001018-2, filed in the County Court at Law No. 2 on March 4, 2026*. On April 24, 2026, she emailed the Court (which, as a represented party, was improper) resurging her requests for accommodation – that she is unable to even sit and be on camera. However, on April 27, 2026, Plaintiff filed a request for a “jury trial on all issues of fact”. See **Exhibit “1”**. It is unfathomable that Copeland contends, on the one hand, that she cannot even sit and be on camera for 15 minutes, but represents to another court in Tarrant County that she is demanding a jury trial (and by implication, that she would be able to proceed with said trial, in person, in front of a jury). These two requests are irreconcilable and cast strong doubt on the veracity of claims made thus far (that she is incapable of participating in in-person hearings or trial).

Weinstein further notes that, although Copeland claims to suffer from disabilities, she has *wholly failed to provide documentation confirming the basis for her disability*. Copeland contends that she suffers from a wide range of psychiatric and physical diseases; however, even if proven, merely having a psychiatric or medical disease does not, per se, make someone disabled, nor does it provide this Court as to any information regarding what accommodations may be required (if any) in evaluating Copeland's requests. Even after litigating matters involving Copeland – across Justice of the Peace, County, and District Courts (and in reviewing state appellate and federal district court/appellate filings) – there remains no identification of what psychiatric or medical disabilities Copeland actually has. Even the determination letter provided by Copeland as to her SSDI status does not indicate what psychiatric and/or medical diagnosis(es) upon which the actual determination is made. *This is crucial in determining the scope of accommodations to which Copeland is entitled (if any).*

Amici file this brief for two purposes: 1) such that any determination by this Court as to any purported disability of Ms. Copeland should not be construed as a determination for any other purpose [including in the matters Weinstein is litigating] that Copeland suffers from such disability and/or that she is a disabled person, pursuant to the Fair Housing Act (as this remains a question of fact in Weinstein's litigation); and 2) such that any determination of this Court as to any particular accommodation of which Ms. Copeland may be provided in this matter does not serve to deny, defeat, and/or encroach on Weinstein's rights in an appropriately adversarial motion practice, to include participation in in-person Motion practice, for discovery to be conducted according to the Texas Rules of Civil Procedure, and for a fully contested jury trial, pursuant to the Texas Rules of Civil Procedure and subject to Weinstein's rights under the Texas and United States Constitution.

II.

FACTUAL HISTORY

Copeland is a previous tenant of The Bowery at Southside, an apartment complex owned by Defendant WMCI Dallas X, LLC and managed by Weinstein Management Co., Inc, beginning in October 18, 2023; thereafter, Copeland renewed her lease on multiple occasions, the last renewal being May 26, 2025, which provided for an end date to her lease of August 24, 2025. Thereafter, she made no effort to renew her lease (and ultimately Weinstein sent Copeland a Notice of Termination, making clear it was not intending to renew the lease, that her lease would be considered terminated effective October 26, 2025, and making clear she would need to, then, vacate the apartment).

At various points in 2024 and March of 2025, Copeland entered work orders for repairs in her apartment. Each of these repairs were made (promptly and completely) by Weinstein – and Copeland voiced no complaint (in any format, to include additional work orders) regarding any matter in her apartment. This includes a March 5, 2025 complaint that “mold” existed near her doorway. The area was properly cleaned, and Copeland did not report a recurrence of any issue (until June 27, 2025 when she sent a DTPA demand letter to Weinstein).

After March 5, 2025 and before June 27, 2025, Copeland did not advise/inform Weinstein, that she suspected mold, that a guest had allegedly observed “mold” (later determined to be not “mold”), that she had been a medical doctor to be assessed for alleged medical conditions from mold, and/or that she had called a mold assessment consultant to inspect the apartment (failing to obtain Weinstein’s authorization this work which included removing baseboards from the wall in the apartment, i.e., destruction to the unit).

Weinstein's retained expert in this matter has since concluded that neither the apartment itself required professional remediation, as the scope of "mold" discovered in the apartment was not significant, and further concluded that there is no evidence to support a need to professionally clean any of Copeland's personal property.

Copeland indicated to apartment management she did not want to remain in her apartment and Copeland was offered to terminate her lease (at no penalty) on June 30, 2025 but she opted not to do so. Copeland was offered to be transferred to another apartment; and while initially interested, Copeland lost interest in that option when it was made clear that she would have to clean her current apartment (due to the strong smell of pet urine) and it would need to pass an inspection before she could be transferred to a different apartment. Copeland, then, insisted on luxury hotel lodging. Weinstein provided hotel lodging (for which it was not legally required or obligated to provide - based on the lease and/or any other statutory or common law, federal or state) for Copeland from July 14, 2025 to October 26, 2025, with the exception of September 11 or 12 through September 19, 2025, **when Copeland moved back into the apartment.**

From June 27, 2025 through October 2, 2025, Copeland interfered with and/or disturbed the work of mold assessment professionals (after demanding that the apartment be professionally remediated, which was not necessary). Both the mold assessment consultant that Copeland hired, as well as the licensed remediation company hired by Weinstein ultimately terminated the project after Copeland sent DTPA demand letters to them.

When it was determined Copeland had returned to live at the apartment, Copeland was directed, by apartment management on September 12, 2025 (through email correspondence) to not disturb the placement of the containment materials and to not turn on the HVAC (which had been turned off and sealed by), and that management would need to inspect the apartment on September

15, 2025 to ensure containment had not been disturbed and that the HVAC had not been turned on. On September 15, 2025 (and thereafter) Copeland refused to allow management staff into the unit to conduct the inspection and, ultimately, Copeland left the apartment again, on or about September 19/20, after Weinstein agreed to resume luxury hotel lodging.

Weinstein agreed to provide this (because the remediation work to be performed by the second remediation company, was scheduled to begin on September 22, 2025 (of which Copeland was made aware, through correspondence sent on September 15, 2025, sent by the undersigned counsel) and this work would not have been able to take place with Copeland staying there.

With respect to providing for alternative lodging: Copeland lived in 4 or 5-star hotels from July 14 – October 26, 2025, for which Weinstein paid (and during which, it appears that on occasion, Copeland improperly made charges to Weinstein’s credit card) and all the while failing to pay rent to Weinstein through the months of August, September, and October. During the time period of July 14-October 26, 2025, Weinstein also paid for boarding of Copeland’s two dogs (at Copeland’s request, even though the first two hotels: The Nobleman and The Bowie House were pet friendly hotels; Copeland did not want the dogs with her and while they were being boarded, Copeland made no payments for grooming, or even food for the dogs; Weinstein paid for all of this). The amounts paid by Weinstein for luxury hotel lodging exceeded \$40,000.00, and the amount paid for pet boarding (and associated expenses- grooming and food) was approximately \$10,000.00. **Copeland has continued to assert that, because she is “disabled” – Weinstein is required to fully fund her lifestyle, including luxury lodging, transportation, food, clothes, and personal items – from the date her lease expired (October 26, 2025) through trial.**

At various times, through September 22, 2025, Copeland actively interrupted, impeded, delayed and/or prevented Weinstein from remediating the apartment, to include:

- Threatening vendors with DTPA claims (resulting in those vendors, consulting legal counsel and terminating their involvement), reported to TDLR that a vendor was not licensed (which was not true and which caused additional delay while TDLR looked into the complaint, working with the vendor to determine licensure status- which it had all along);
- Refusing to move her items so remediation could begin (noting Copeland called the police when Weinstein maintenance staff moved certain items from one room to another, in mid-August 2025, so that areas for remediation could be accessed – after Copeland refused to cooperate (in violation of her lease agreement; the police determined no criminal activity had occurred);
- Refusing to participate in reaching agreements as to use of a second mold assessment company (to obtain an updated assessment; after her DTPA letter sent to her hired mold assessment consultant resulted in its withdraw from the project; threatening that any remediation constituted criminal trespass and/or “spoliation”;
- Sending a Cease and Desist (which involved engaging an attorney, John Douglas - to send this) which indicated that a federal lawsuit (seeking a temporary restraining order) would be filed against Weinstein, if Weinstein attempted to remediate its own property; and during the time she resided in the apartment September 11/12 through September 19 or 20- refusing to adhere to the directive of the property management – turning on the HVAC (causing a freeze, thaw – and water intrusion – into the apartment, resulting in additional and significant damage to the interior of the apartment, delaying mold remediation efforts and requiring water remediation first).

Copeland’s above chronologized course of conduct necessitated Weinstein filing the current litigation pending in the 141st District Court in Tarrant County – by which it secured a Temporary Restraining Order and Temporary Injunction, permitting Weinstein to complete remediation (which it has now done) and prohibiting Copeland from entering the premises. Copeland remains prohibited from entering the apartment while the apartment is “built back” following remediation.

Copeland was ultimately evicted from the apartment, a determination which is under appeal.

III.

PROCEDURAL HISTORY RELEVANT TO “DISABILITY” CLAIMS

Copeland has requested, as a matter of “accommodation” due to her disability status under either the state/federal Fair Housing Act and/or the Americans with Disabilities Act, that she is entitled to a broad scope of relief, including matters which are clearly outside of any relief contemplated by such statutes (even if she were able to show she is entitled to any relief under same).

Copeland has requested a pre-trial award of damages, consisting of multiple requests for Injunctions/Court Order demanding that Weinstein (without a jury trial on the merits, as it is entitled) provide to Copeland pre-trial monetary awards, for lodging, transportation, food, clothes, replacement of personal property, and medical expenses. Copeland has not shown herself to be in any way more entitled to any particular type of relief than any other personal injury litigant who might have determined to file a lawsuit in Tarrant County, and her requests to be pre-emptively and prematurely awarded personal injury damages, would set a dangerous precedent in which any personal injury litigant would similarly be permitted to apply for and then be pre-awarded damages.

She has also requested that discovery deadlines be extended and/or abated, that she not have to comply with discovery as contemplated by the Texas Rules of Civil Procedure, that motion practice be handled via written submission only, that she be exempted from depositions (by requesting her deposition be taken by written questions only), that she be appointed counsel, and that evidentiary matters be handled by written submission only.

- Lodging (in amounts ranging from \$7,950.00 a month to \$22,000.00 a month) until trial;^{1, 2, 3, 4, 5, 6, 7}
- Per Diem payments for food;⁸
- Clothes;⁹
- Transportation;¹⁰
- Medical Care;¹¹
- No-cost transcripts;^{12, 13}
- Appointment of a “neutral” Mold Assessment Consultant (to avoid payment of any expert fees, in a manner not contemplated in the Texas Rules of Civil Procedure);¹⁴
- Replacement of personal property;^{15, 16, 17, 18}
- Appointment of counsel;^{19, 20, 21}
- Requests to not have to comply with discovery requests and/or deposition notices, or for

¹ Emergency Application for Preservation Order and Temporary Relief, Filed September 29, 2025; Emergency Brief in Support of Temporary Mandatory Injunction, filed October 16, 2025; Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

² Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

³ Verified Motion for Limited Reconsideration, filed November 19, 2025;

⁴ Motion for Statutorily Required Accommodations under Texas Fair Housing Act and Request for Clarifications of Rights, filed December 1, 2025;

⁵ First Amended Motion for Statutorily Required Compliance, filed December 3, 2025;

⁶ Emergency Motion for Clarifying Order, filed December 5, 2025;

⁷ Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment, filed December 29, 2025;

⁸ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

⁹ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹⁰ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹¹ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹² Request for Transcript of October 2, 2025 hearing, filed on October 5, 2025;

¹³ Motion for Transcripts at No Cost, filed March 27, 2026;

¹⁴ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹⁵ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

¹⁶ Verified Motion for Reconsideration, filed November 19, 2025;

¹⁷ Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment, filed December 29, 2025;

¹⁸ Supplement to Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment, filed January 2, 2026;

¹⁹ Motion for Appointment of Counsel under 42 U.S.C. § 3613(b)(1), filed November 23, 2025;

²⁰ First Amended Motion for Appointment of Counsel, filed December 23, 2025;

²¹ Omnibus Notice of Judicial Unavailability, filed January 2, 2026;

an extended delay in responding to discovery requests;^{22, 23, 24, 25, 26, 27, 28, 29}

- Inappropriate requests targeting counsel for Weinstein;^{30, 31} and
- Summary disposition of all matters by “submission” included questions of fact reserved for a jury determination, and/or matters which required evidentiary hearings (including multiple requests for “emergency” injunctive relief);^{32, 33, 34, 35}

Copeland did not prevail on any of these “requests” for “accommodations”, as such were outside of the relief provided to her under any state or federal disability framework. She treats the consistent denial of these “accommodations” as a concerted effort to deprive her of her perceived disability rights, when in reality, she is not entitled to the relief requested.

As of the filing of this Brief, Copeland has systematically disrupted the litigation process, under the guise of being unable to participate due to purported “disabilities”. Significantly, these disruptions are ongoing, duplicative, and impermissible given that they fundamentally alter the nature and manner of adversarial litigation.

Copeland has failed to provide any evidence in support of her causes of action and/or claims for damages, to include having failed to provide any medical records (which Copeland was ordered by the Court to do, and which she has failed to produce). She has failed to sit for her

²² Motion for Protective Order, filed December 19, 2025;

²³ Motion for ADA Accommodations, filed December 28, 2025

²⁴ Copeland’s Motion for Temporary Stay of Discovery and Depositions, filed February 9, 2026;

²⁵ Request for Continuance and Notice of ADA Barriers, filed March 11, 2026;

²⁶ Plea in Abatement, filed March 26, 2026;

²⁷ Notice of Post-Order Constraints, filed April 12, 2026;

²⁸ Verified Motion for Extension of Deadlines, Clarification of Court Directives, and Related Relief, filed April 13, 2026;

²⁹ Notice regarding ADA Court- Access Compliance and Demand and Request to Consider Transcript-Access Motion Separately and Reset Remaining Submission Matters filed April 24, 2026;

³⁰ Verified Motion to Disqualify Plaintiffs’ Counsel as Material Fact Witnesses, filed on November 27, 2026;

³¹ Motion for Referral to the U.S. Department of Justice and Texas Attorney General for Investigation Pattern-Or-Practice Civil Rights Violation, filed December 1, 2025;

³² Emergency Notice of Medical Inability to Attend and ADA Accommodation Request, filed October 2, 2025;

³³ Emergency Motion to Vacate Temporary Injunction, filed October 23, 2025;

³⁴ Motion for ADA Accommodations, filed December 28, 2025;

³⁵ Omnibus Notice of Judicial Unavailability, filed January 2, 2026;

deposition. She has refused to allow Weinstein to take third-party depositions, and has moved to quash nearly every request Weinstein has made for third-party records. Copeland has, in all manners, refused entirely to participate meaningfully in discovery, and instead, has claimed that she is not required to participate and/or that her participation should be limited, based largely on her disability claims.

IV.

WEINSTEIN'S BRIEF TO THE COURT

Weinstein has, and has had, insufficient information by which to determine whether Copeland has any disability which requires accommodation under Title II of the Americans with Disabilities Act. If Copeland has a disability (which is yet unproven), then the “needs” she asserts under Title II are such that jeopardize Weinstein’s ability to obtain fair and impartial rulings on this matter, and which further implicate a denial of Weinstein’s constitutional rights – including but not limited to the right to a jury trial pursuant to Texas and United States Constitution.

As a preliminary matter, Copeland must show that she is a party to whom the American with Disabilities Act and/or the Fair Housing Act applies. Disability means, with respect to an individual, a physical or mental impairment that substantially limits one or more of the major life activities of such individual; a record of such an impairment; or being regarded as having such an impairment. Major life activities include but are not limited to: caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, sitting, reaching, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, writing, communicating, interacting with others, and working. 28 CFR § 36.105.

The American with Disabilities Acts provides for protection in key areas of (1) employment [Title I]; 2) State and Local Government [Title II]; and 3) Public Accommodations

[Title III].

To make a prima facie showing under Title II of the American with Disabilities Act, a plaintiff must show: “(1) that he is a qualified individual within the meaning of the ADA; (2) that he is being excluded from participation in or being denied the benefits of services, programs, or activities for which the public entity is responsible for, or is otherwise being discriminated against by the public entity; and (3) that such exclusion, denial of benefits or discrimination is by reason of his disability”. *Melton v. Dallas Area Rapid Transit*, 391 F3d 669-671-672 (5th Cir. 2004). Therefore, it is the Plaintiff (claimant) burden to establish each element.

A “disability” under the ADA is “a physical or mental impairment that substantially limits one or more major life activities.” 42 U.S.C. § 12102(1). Major life activities include, but are not limited to, “caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, and working.” 42 U.S.C. § 12102(2)(A).

The ADA, Title II imposes an obligation on a public entity to make “reasonable accommodations” for disabled individuals (42 USC §12131); *Jim Choi v. Univ. of Tex. Health Sci. Ctr. at San Antonio*, 633 F. App’x 214, 215 (5th Cir. 2015). However, the public entity is required to accommodate limitations, not disabilities. *Taylor v. Principal Fin. Grp., Inc.* 93 F3d 155, 164 (5th Cir. 1996). The ADA does not require clairvoyance. *Hedberg v. Ind. Bell Tel. Co.*, 47 F3d 928, 934 (7th Cir. 1995).

While the ADA, Title II (as applied to Courts) is intended to ensure a disabled litigant is afforded due process, due process is guaranteed to every individual (with or without disabilities). *Boddie v. Connecticut*, 401 U.S. 371, 370, 28 L. Ed. 113, 91 S. Ct. 780 (1971). Significantly, as related to providing accommodations for disabled individuals, and in relation to obtaining judicial

services, “Title II does not require States to employ any and all means to make judicial services accessible, or to compromise essential eligibility criteria for public programs. It requires only “reasonable modifications” that would not fundamentally alter the nature of the service provided and only when the individual seeking the modification is otherwise eligible for the service.”. *Tennessee v. Lane*, 541 U.S. 509, 158 L. Ed 2d 820, 124 S. Ct. 1978 (2004).

Though Plaintiff has made continual assertions that she is disabled, citing to various diagnosed conditions (and for which, again, no medical records have ever been provided), her own conclusory statements are not sufficient to meet the first element of finding that a disability exists (per the ADA, when determining what, if any, “accommodations” are necessary and/or reasonable and/or whether there is a legal obligation to provide such). Importantly, that she has represented that she is able to move forward with, and is demanding of, a jury trial shows that she is able to participate, when she desires to, and that she understands how/why a jury trial should be conducted.

Copeland bears the burden of proof to establish she has a qualifying ADA disability and to establish the limitations (as related to the court process and litigation process) that are related specifically to such disability, and she has failed to do either. Copeland has not made a prima facie showing that she is entitled, under the ADA, to obtain any particular “accommodation” and/or “modification”, and/or that any request she has attempted to make is necessary and/or reasonable. Rather, what Copeland has been able to demonstrate, consistent with her Request for a Jury Trial in an ancillary proceeding, is that she is able to conduct litigation activities *when she wishes to*. Since June 27, 2025 (when Copeland first sent her DTPA demand to Weinstein), Copeland has filed in excess of 130 documents in state and federal Court, either as a pro se Plaintiff or cases in which John Douglas was Copeland’s attorney, but which he has admitted in various hearings and pleadings that Copeland wholly or substantially drafted documents which he then signed as

counsel.³⁶ Some of these filings are in excess of 100 pages, including exhibits.

Copeland has provided no legal authority to support what she is requesting as an accommodation or modification. *The accommodations requested by Copeland fundamentally alter the nature of the service provided* by the Court – in that Copeland seeks to litigate outside of the Texas Rules of Civil Procedure and the Tarrant County Local Rules of Civil Procedure. Instead, Copeland seeks a non-adversarial process by which she can choose whether to attend certain hearings and by which she can assert that, when she loses on matters in which her claims/causes of action have no support in fact or in law, that she can instead chose to claim that she was deprived of justice.

Copeland has been able to perform involved functions necessary to maintain a lawsuit: draft pleadings and other documents, read and review materials provided by Court, Weinstein's counsel, and third-parties, attempt to compile evidence, conduct discovery, prepare and present an oral presentation based on her perception of facts/law, and communicate via email and telephone, and use of Zoom technology to appear remotely. Copeland has provided no authority to support her requests that she is entitled to have this matter handled any differently than the Texas Rules of Civil Procedure provide.

³⁶ *In the Interest of Q.C. and P.C.*, on appeal to the Texas Supreme Court, Cause No. 25-0325; Trial Court Cause No. 231-686108-20 (Petition for Writ of Review to Texas Supreme Court denied); *Copeland v. Weinstein Properties/WMCIX, LLC*; JP03-25-SC00028212, in the Justice of the Peace Court No. 3, Tarrant County, Texas (Judgment for Defendant); *Copeland v. WMCIX, LLC*; JP03-25-RR00000029, in the Justice of the Peace Court No. 3, Tarrant County, Texas (Judgment for Defendant); *Copeland v. Decker, et al*; Cause No. 236-363132-25, In the 236th District Court of Tarrant County, Texas (pending Motion to Dismiss); *Copeland v. Tarrant County, Texas, et al*; Cause No. 4-25-CV-0089-O, in the United States District Court for the Northern District of Texas, Fort Worth Division (dismissed with prejudice), now on appeal to the 5th Circuit; and *Copeland v. Nevarez*; and Cause No. 4:25-CV-137, appeal to the U.S. Court of Appeals for the 5th District denied).

Even if Copeland were to make a prima facie showing of any particular impairment/disability, **such cannot be used to deprive Weinstein of its right to a full and vigorous representation by counsel. This includes, but is not limited to, the ability to fully brief the Court, present oral arguments, and conduct discovery, inclusive of depositions.**

With respect to accommodations requested by Copeland from Weinstein, there is no legal authority to support those requests in addition to there being no factual foundation to support those requests. Copeland has not shown that she requires any particular accommodation to alleviate a burden placed on her due to a disability – and has further failed to distinguish any particular claimed disability from the claims for impairment and/or personal injury for which most personal injury litigants in Tarrant County may claim to suffer. What Copeland contemplates is that any injured litigant can and should be granted sweeping accommodations that would dramatically change the manner (and wholly disregard the Texas Rules of Civil Procedure) for which personal injury litigation is handled in Tarrant County.

Texas – and the United States – has a well-defined and established personal injury justice system. This system allows for the prosecution of meritorious claims and defenses, the discovery of admissible evidence, and the determination of liability and damages – if any – after a vigorous and contested adjudication of the matters at issue before a jury. This is the well-established public policy of the law. Weinstein is entitled to due process; Weinstein is entitled to fully litigate its claims and defenses, and should not be bound to only having Motions/matters heard by submission, denied a jury trial, and/or any other “accommodation” that fundamentally alters the prosecution and maintenance of this lawsuit in any manner that deviates from the Texas Rule of Civil Procedure and Tarrant County Local Rules.

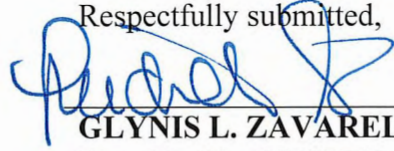
V.

CONCLUSION

Plaintiff has failed to carry her burden in establishing that she has any particular disability, which would entitle her to any accommodation/modification to the judicial and/or litigation process, pursuant to the ADA, Title 11. Further, Plaintiff has failed to carry her burden to establish that the requested accommodation/modification is necessary. Finally, and significantly – Plaintiff has failed to carry her burden to establish that the requested accommodation/modification is reasonable and/or to establish that implementing such would not fundamentally alter the judicial (court) process and/or the litigation process.

Accordingly, Weinstein requests that any determination by this Court as to any purported disability of Ms. Copeland should not be construed as a determination for any other purpose, to include in the matters Weinstein is litigating, that Copeland suffers from such disability and/or that she is a disabled person, pursuant to the Fair Housing Act and/or the ADA (as this remains a question of fact in Weinstein’s litigation). Weinstein further requests such that any determination of this Court as to any particular accommodation of which Ms. Copeland may be provided in this matter does not serve to deny, defeat, and/or encroach on Weinstein’s rights in an appropriately adversarial motion practice, to include participation in in-person Motion practice, for discovery to be conducted according to the Texas Rules of Civil Procedure, and for a fully contested jury trial, pursuant to the Texas Rules of Civil Procedure and subject to Weinstein’s rights under the Texas and United States Constitution.

Respectfully submitted,



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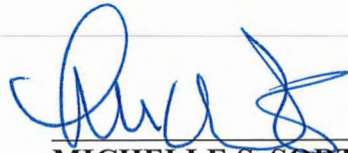
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ATTORNEYS FOR PLAINTIFFS

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing instrument was served on counsel of record this **6th day of May, 2026** in accord with the Texas Rules of Civil Procedure.



MICHELLE S. SORTOR

EXHIBIT “A”

NO. 153-355436-24**KATHRYN COPELAND,
PLAINTIFF,****v.****JESSICA JANICEK AND
KOONS FULLER, P.C.,
DEFENDENTS.****IN THE DISTRICT COURT****153RD JUDICIAL DISTRICT****TARRANT COUNTY, TEXAS**

Plaintiff's Notice of Jury Demand

TO THE HONORABLE PRESIDING JUDGE:

Plaintiff Kathryn Copeland hereby files this Jury Demand pursuant to Rule 216 of the Texas Rules of Civil Procedure. Plaintiff requests a trial by jury on all issues of fact and has filed a Sworn Statement of Inability to Pay Court Costs regarding the required jury fee.

Respectfully submitted,**KATHRYN COPELAND****1137 S. Pine Street****Grapevine, Texas 76051****(817) 789-8498****Katie@CopelandLawTexas.com****Plaintiff, Pro Se**

CERTIFICATE OF SERVICE

I certify that a true and correct copy of this document was served on all counsel of record in accordance with Texas Rule of Civil Procedure 21a on this April 25, 2026, to:

Robert A. Bragalone and B. Ryan Fellman
bbragalone@grsm.com | rfellman@grsm.com

**KATHRYN COPELAND**

Automated Certificate of eService

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